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MTSS is Not Enough: Preventing Disproportionality through Nondiscriminatory Tiered Services

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Bryn Harris, PhD, University of Colorado - Denver

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IDEAs that Work
Office of Special Education Programs
U.S. Department of Education

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The contents of this report were developed in part under a grant from the U.S. Department of Education, # H325D160016. However, those contents do not necessarily represent the policy of the U.S. Department of Education, and you should not assume endorsement by the Federal Government. Project Officer, Sarah J. Allen, Ph.D.

WELCOME AND INTRODUCTIONS

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Learner Objectives

- Learn how disproportionality within special education and school discipline may be prevented through nondiscriminatory tiered services.
- Identify laws and policies designed to address disproportionality as well as evidence for nondiscriminatory universal, targeted, and intensive supports to prevent disproportionality.
- Identifying common pitfalls to remediating disproportionality as well as recommendations for action and future research.

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Amanda L. Sullivan, PhD, University of Minnesota

Background & Conceptualization

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What Is *Disproportionality*?

- **Group differences** in identification, placement, or other outcomes
  - **Differences in individual's risk** due to sociodemographic group membership
- Common indices: risk, relative risk, composition



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Legal-Historical Context

Disproportionality in the Individuals with Disabilities Education Act (IDEA):

1997
- States required to define "**significant disproportionality**" (i.e., over-representation) and identify districts accordingly

2004
- Sig Dispro→15% federal funds shifted to **comprehensive early intervening**
- Review policies, procedures, practice

2016
- Equity in IDEA; **Standard approach** + state definition of thresholds
- Identification of "**root causes**"

2018/19
- DeVos defers new rule
- Judge stays deferral
- DoJ appeals
- To be continued…

Little improvement in state patterns & intentional avoidance of sanction and change/improvement

Sullivan, A. L., & Osher, D. (2019). IDEA's double bind: A synthesis of disproportionality policy interpretations. *Exceptional Children, 85*, 395-412. doi:10.1177/0014402918818047

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Are We Identifying the Right Students?

- What is and isn't disability?
- How do we identify it?
- Are our decisions unbiased?



…We're not sure.

Sullivan, A. L., Sadeh, S., & Houri, A. (2019). Are school psychologists' decisions reliable and unbiased? A multi-study experimental investigation. *Journal of School Psychology, 77*, 90-109. https://doi.org/10.1016/j.jsp.2019.10.006

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Special Education's Persistent Tension

"The **same program that can separate** disadvantaged students from their peers, distinguish them with a **stigmatizing label**, and subject them to a curriculum or **low expectations** can also provide additional resources, supports, and **services without which they cannot benefit from education**…" (p.20)



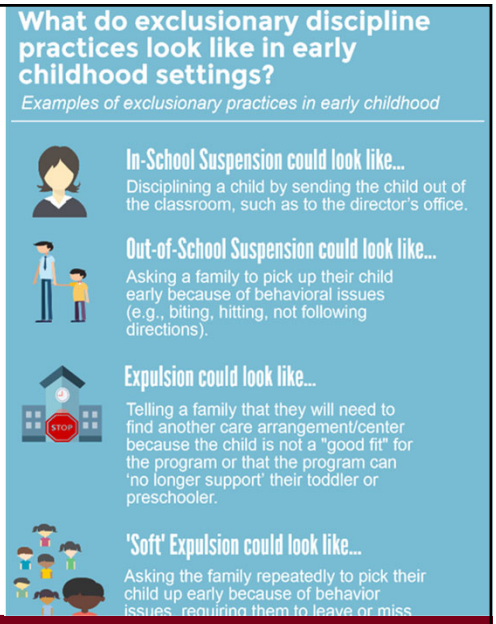
Donovan, S., & Cross, C. T. (2002). *Minority students in special and gifted education.* Washington, D.C.: National Academy Press. Retrieved from http://site.ebrary.com/id/10032383

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How Else Are Students Pushed Out?

Exclusionary discipline = Removal of students from their usual learning environment



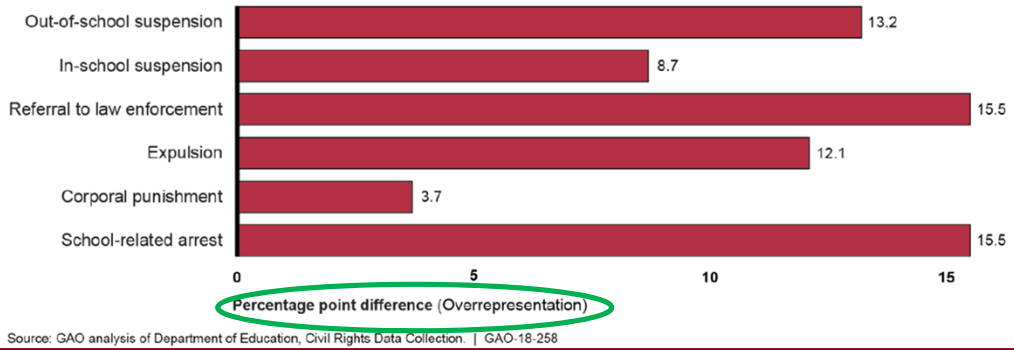
Source: https://preventexpulsion.org/overview/

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Who Is Most Affected?

Figure 5: Students with Disabilities' Overrepresentation Among Students Who Received Disciplinary Actions, School Year 2013-14

This chart shows that students with disabilities were overrepresented among students who received six types of discipline. For example, students with disabilities were overrepresented among students suspended out of school by approximately 13 percentage points, as shown in the chart, because they made up about 12% of the overall K-12 student population, but 25% of the students suspended out of school.



Source: GAO analysis of Department of Education, Civil Rights Data Collection. | GAO-18-258

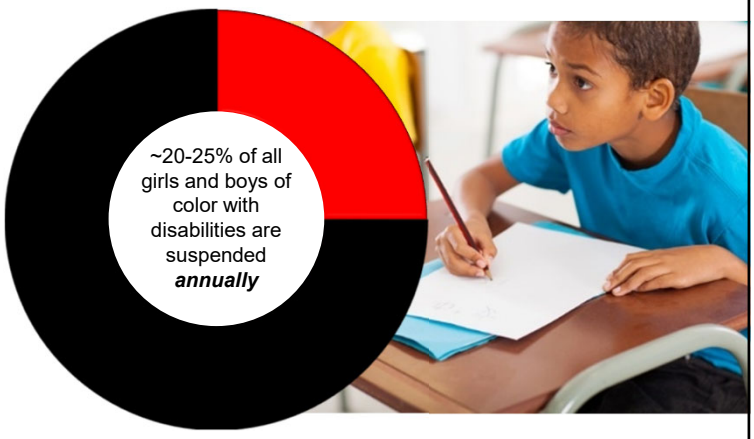
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Who Is Most Affected?

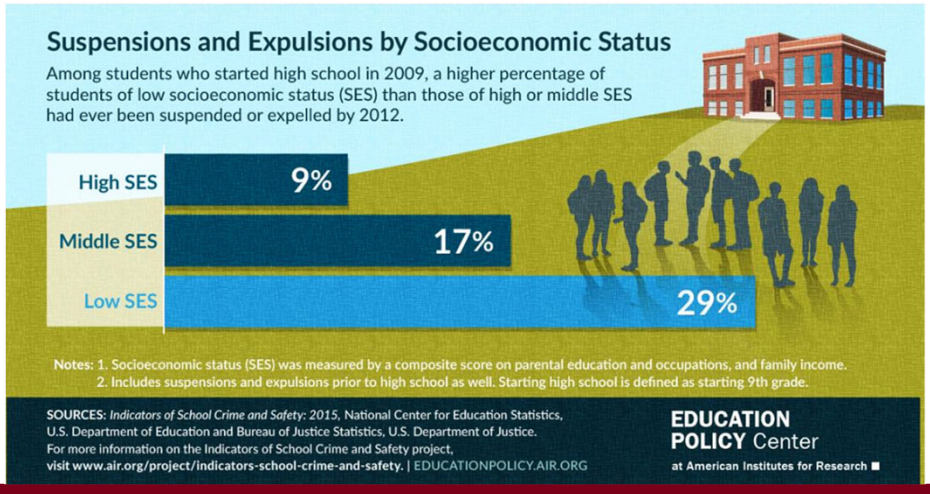
Students with disabilities

- More frequent punishment
- More removals
- More days missed
- Highest risk:
  - Black, Hispanic, and American Indian students
  - Students with emotional disabilities, learning disabilities



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Who Is Most Affected?



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Unintended Consequences of Exclusionary Discipline



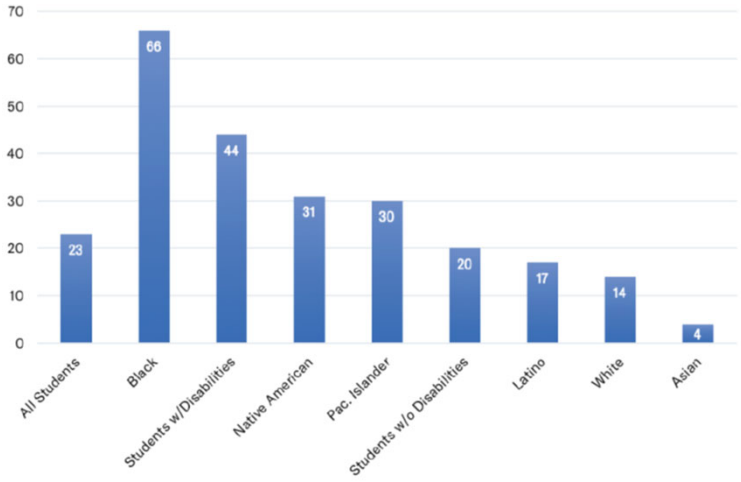


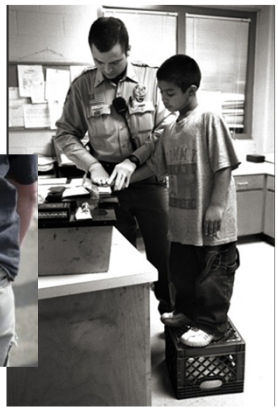
Chart A: Days of Lost Instruction per 100 Students by Race and Disability in 2015-16

Losen, D., & Whitaker, A. (2019). *11 million days lost: Race, discipline, and safety at U.S. public schools - A joint report by the center for civil rights remedies of UCLA's Civil Rights Project and the American civil liberties union of Southern California.*

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Unintended Consequences of Exclusionary Discipline





Students who have been suspended are:



as likely to repeat a grade.



as likely to drop out of school.



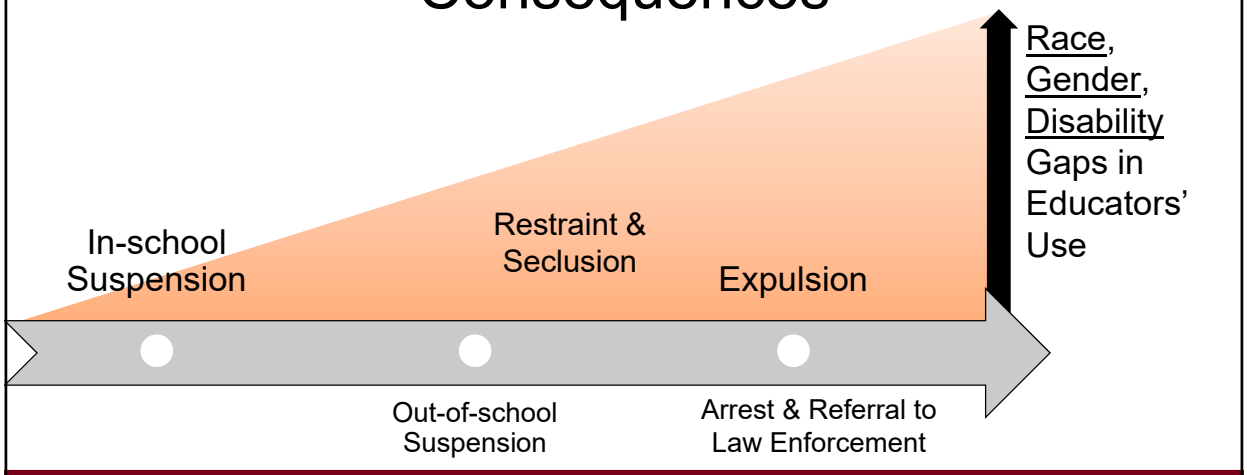
as likely to be in contact with the juvenile justice system in the next year.

Source: https://www.aclu-wa.org/student-discipline

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Greater Disparities for More Severe Consequences



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What Disproportionality Is **NOT** About:

- Differences in student behavior
- Improving student behavior

"In sum, a fairly extensive body of research has **failed to find any evidence** to support that notion that students of color earn higher rates of exclusionary discipline through higher rates of disruptive behavior." (Skiba, 2015, p. 110)

Skiba, R. J. (2015). Interventions to address racial/ethnic disparities in school discipline: Can systems reform be race-neutral?. In R. Bangs and L. E. Davis (Eds.), Race and social problems (pp. 107-124). New York, NY: Springer.

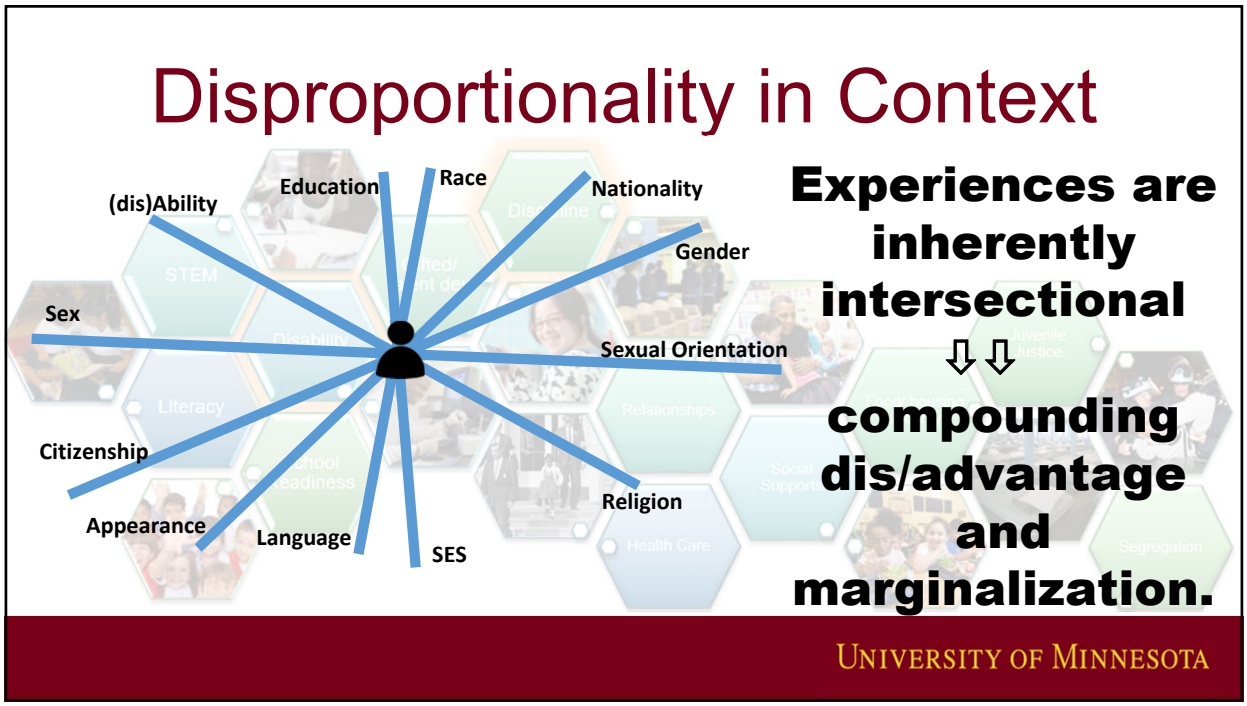
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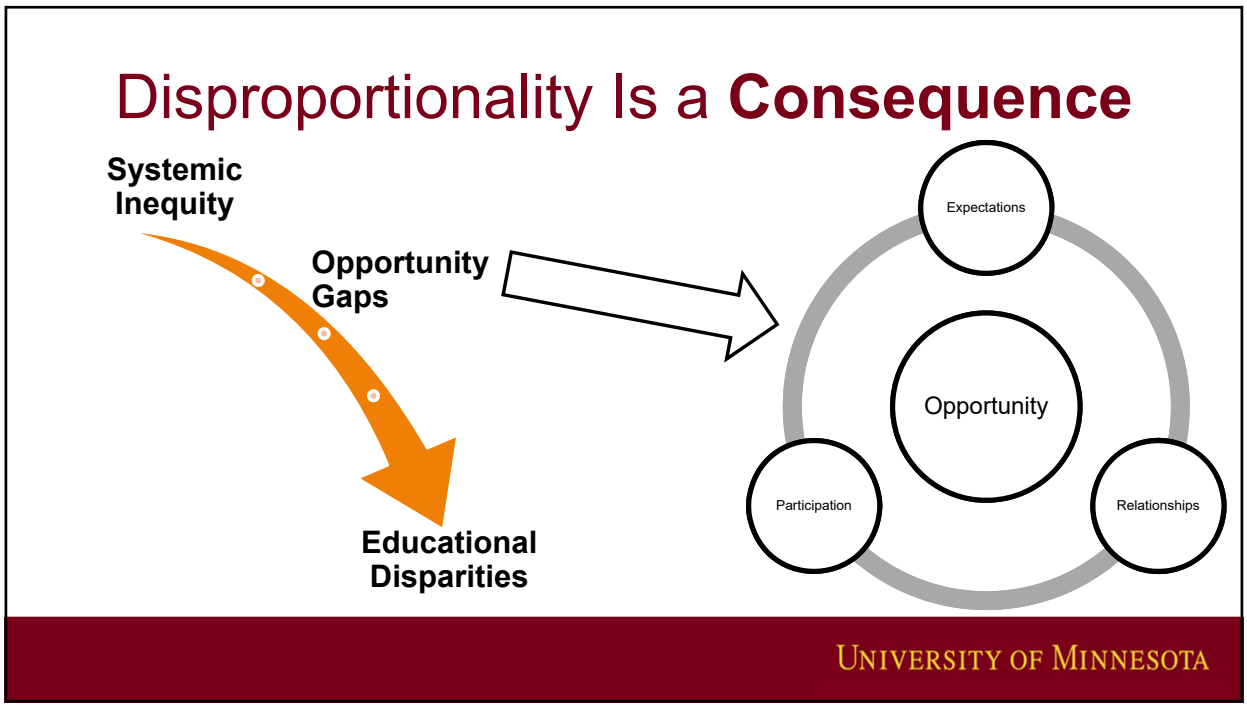
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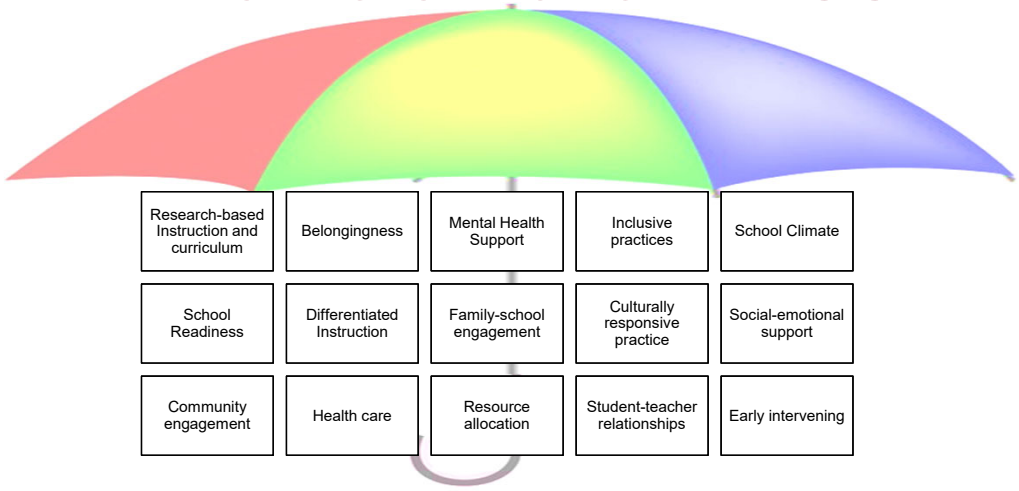
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Redressing Disproportionalities

Research-based Instruction and curriculum	Belongingness	Mental Health Support	Inclusive practices	School Climate
School Readiness	Differentiated Instruction	Family-school engagement	Culturally responsive practice	Social-emotional support
Community engagement	Health care	Resource allocation	Student-teacher relationships	Early intervening

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The Potential of MTSS



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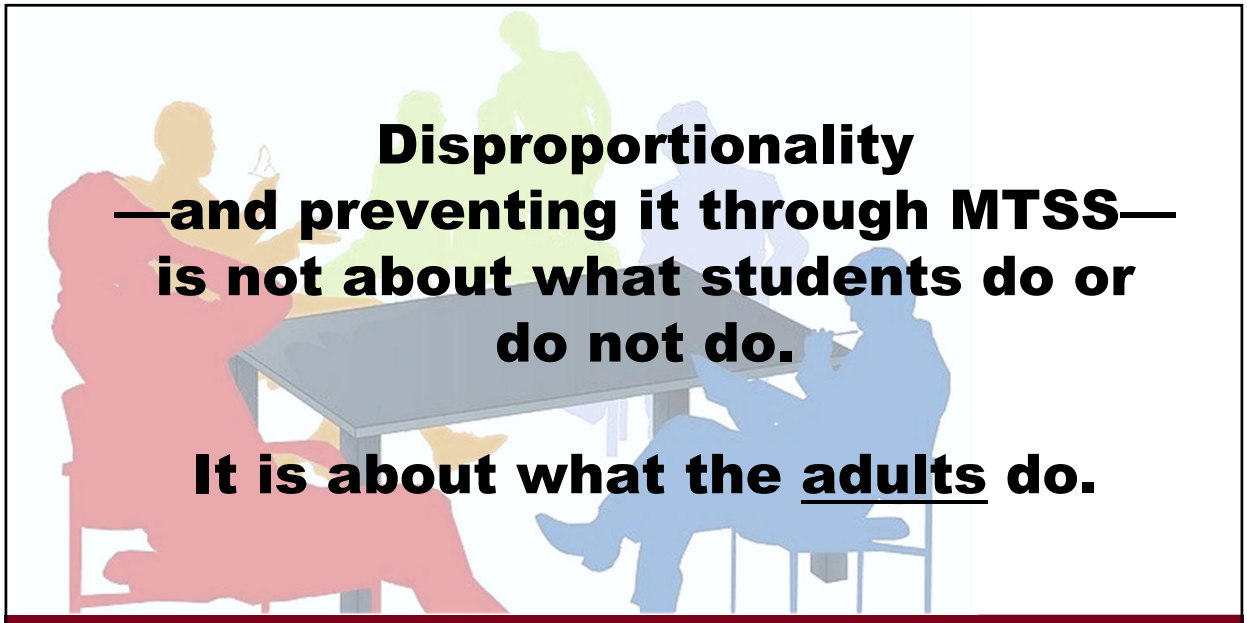
Pitfalls of MTSS

Well-intentioned but misdirected conceptualization and implementation ignores inequities that contributed to 'disproportionality'.

Common Pitfalls

- Categorization ("tier 1/2/3 students")
- Race-neutral / color-blind (evasive) / culture-blind
- Data only for gauging student performance

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Disproportionality —and preventing it through MTSS— is not about what students do or do not do.

It is about what the adults do.

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MTSS Is Not Enough

...will simply be like old wine in a new bottle, in other words, just another deficit-based approach to sorting children

Disrupting systemic inequity means MTSS must be driven by:

- ✓ Race-conscious
- ✓ Cultural-conscious
- ✓ Bias-aware
- ✓ Focused on the systems and adults within it

Klingner, J. K., & Edwards, P. A. (2006). Cultural considerations with response to intervention models. *Reading Research Quarterly*, *41*, 108-117. doi:10.1598/rrq.41.1.6

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Mollie Weeks, MA, University of Minnesota

NONDISCRIMINATORY SERVICES: TIER 1

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Equity Policies and Legislation

Individuals with Disabilities Education Improvement Act	Title IV of the Civil Rights Act of 1964
• Requires LEAs to monitor for significant disproportionality • Redirection of 15% of an LEA's CEIS funds • Standard methodology and root cause analysis	• Prohibits discrimination based on protected class (e.g., race, national origin) • Disproportionality may be evidence of discrimination • Policies • Procedures • Practices

(IDEA, 2004; Lhamon, 2016; USDOE, 2016)

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Preventing discrimination may involve "developing and implementing strategies for teaching, including the use of appropriate supports and interventions, which encourage and reinforce positive student behaviors and utilize exclusionary discipline as a last resort" (Lhamon & Samuels, 2014, p. 21).

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High Quality Core Instruction

Academic and instructional material taught to all students and aligned to standards.



(Gibbons et al., 2019)

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Purposes of Core Instruction

- Prevention of problem behavior and academic issues through evidence-based supports.
- Promotion of appropriate behavior.
- Early identification of behaviors or academic skills that are unresponsive to universal instruction.

How can core instruction promote equity and non-discrimination?

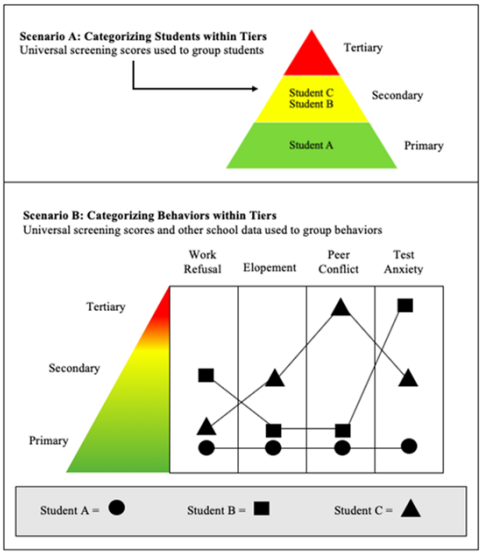
(Fuchs et al., 2012; Gibbons et al., 2019; Stoiber & Gettinger, 2016, Sullivan et al., under revision)

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Core Instruction and Equity

- Reduction in disproportionality?
- Shift from categorizing students to categorizing educational issues.



(Sullivan et al., under review)

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Culturally-Responsive Instruction

Cultural variety is celebrated
Competency is recognized and leveraged
United home and school experiences
Floor responsibility of maintaining language and culture
Language and culture are inherently valued
Advances educational equity and social justice initiatives

(Au, 2016)

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Culturally-Responsive Behavior Supports

- What about SWPBIS?
  - Ill-defined relationship between SWPBIS and educational equity.
  - Evidence shows limited effectiveness for the association between SWPBIS and reduced exclusionary discipline disproportionality.

(Sugai & Horner, 2019, Weeks & Sullivan, 2019)

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Culturally-Responsive Behavior Supports

There are possible and largely untested adaptations to SWPBIS to promote equity:

- Identity
  - The recognition and valuing of the myriad culture identities within a school in addition to your own.
- Voice
  - Authentic communication that allows students and families to take ownership of school initiatives.
- Supportive Environments
  - Fostering a positive school climate via a whole school effort to teach appropriate behavior to fluency.

(Leverson et al., 2016)

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Culturally-Responsive Behavior Supports

- Situational Appropriateness
  - Teaching school-based behavioral expectations to fluency for all students to succeed (i.e., code switching).
- Equity Data
  - Not only analyzing educational data but engaging in open discussion of the patterns therein and malleable factors to promote equity.
    - Student Outcomes
    - Implementation Fidelity

*See *PBIS cultural responsiveness field guide: Resources for trainers and coaches*

(Leverson et al., 2016)

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Universal Responses to Threat

- The students who are referred to teams who conduct threat assessments provide evidence for some discriminatory treatment.
- Systems for responding to threats (e.g., the Virginia Model) can support more equitable decision-making.

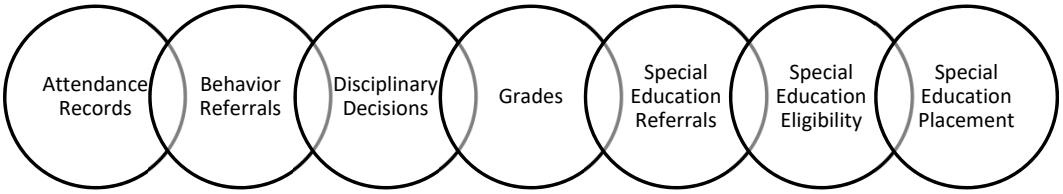
(Cornell et al., 2017; Cornell et al., 2018)

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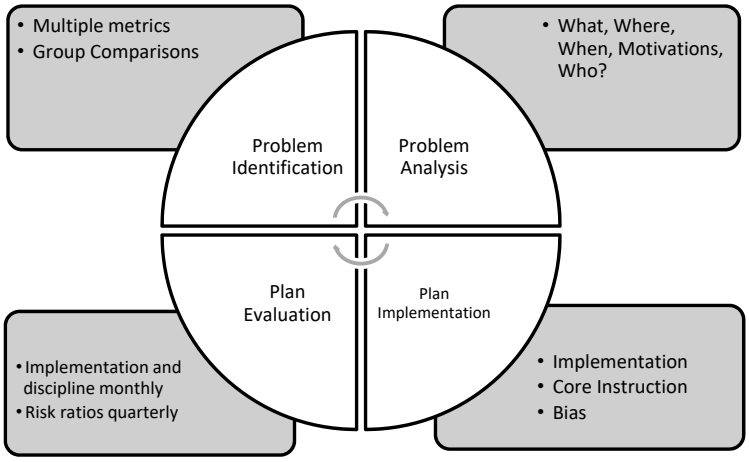
Universal Data to Improve Equity

- We cannot solve a problem is we are unaware.
- Schools contains a wealth of data than can be leveraged identify disproportionality.



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Systematic Problem-Solving with Data



(McIntosh et al., 2014)

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Cultural Competency Self-Assessment

- The first step to enhancing culturally competent practice is to look inward.
- Self-assessments as a *cultural audit* of an organization.
- Involve:
  - Leadership
  - Staff
  - Other Stakeholders

(Rice, 2007)

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Areas to Evaluate

Resources for Students	Physical Spaces	Methods of Communication	Values and Attitudes
Differential Treatment	Service Effectiveness	Policies	Discipline Practices
Staff Recruitment	Cultural Competence Interventions	Language Services	Community Connections

(Rice, 2007)

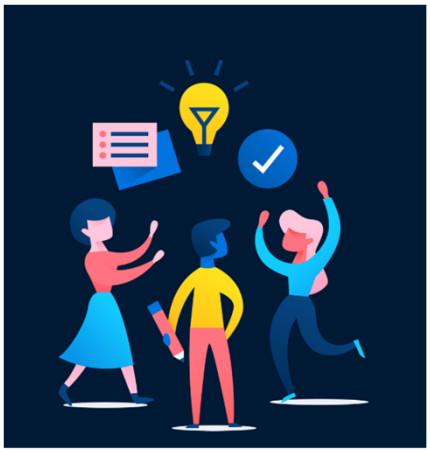
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Tara Kulkarni, MA, University of Minnesota

NONDISCRIMINATORY SERVICES: TIERS 2 AND 3

Effective Teaming



- Multidisciplinary
- Structured Meetings

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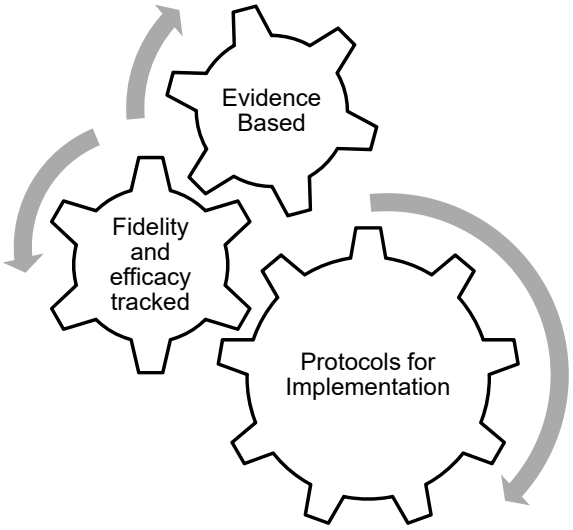
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Referral Process



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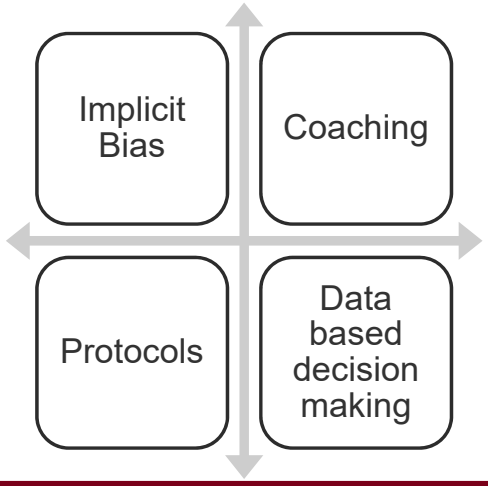
Intervention at Tier 2



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Teacher support and training



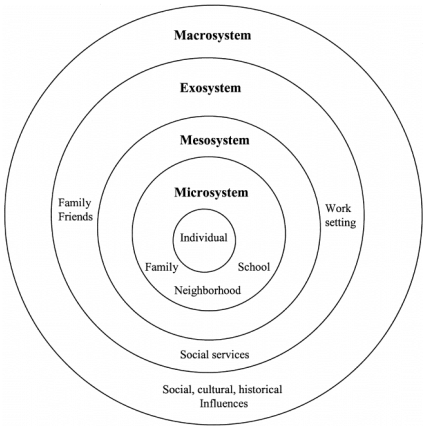
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NONDISCRIMINATORY SERVICES: TIERS 3

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Ecological Framework



Help teachers consider sociological factors

Avoid within child labels

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Individualized Services

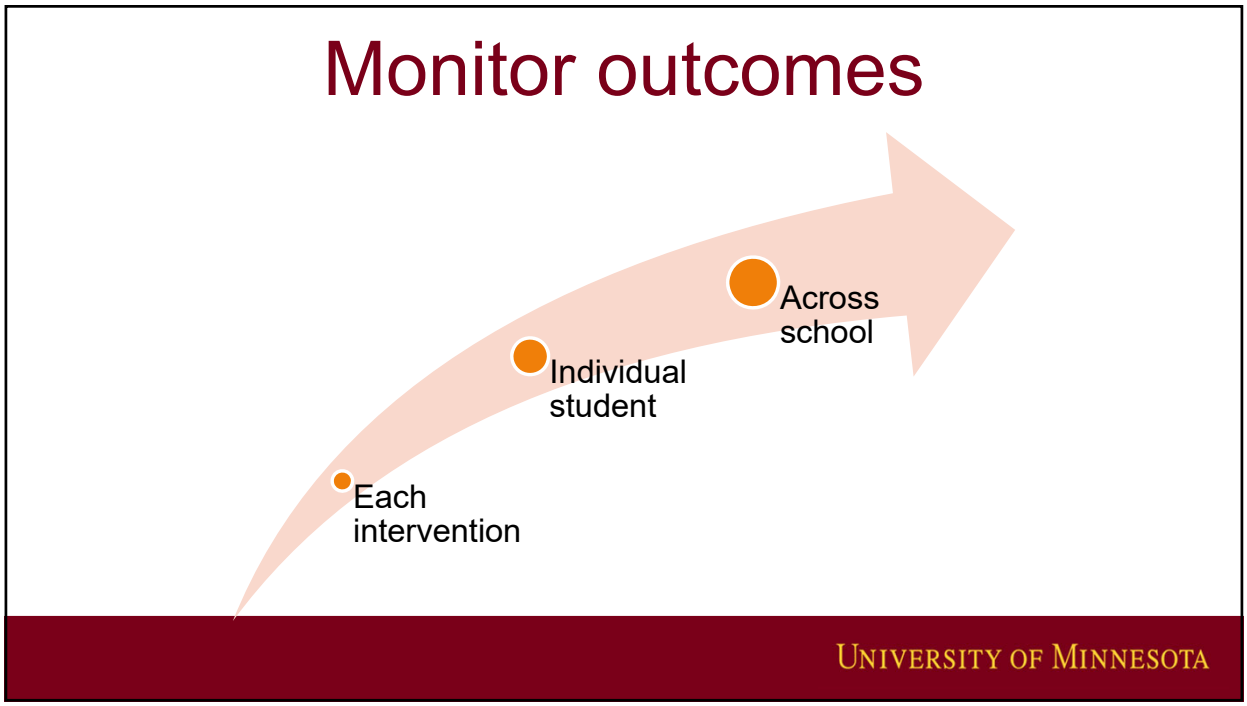
Avoid used of standard "batteries"

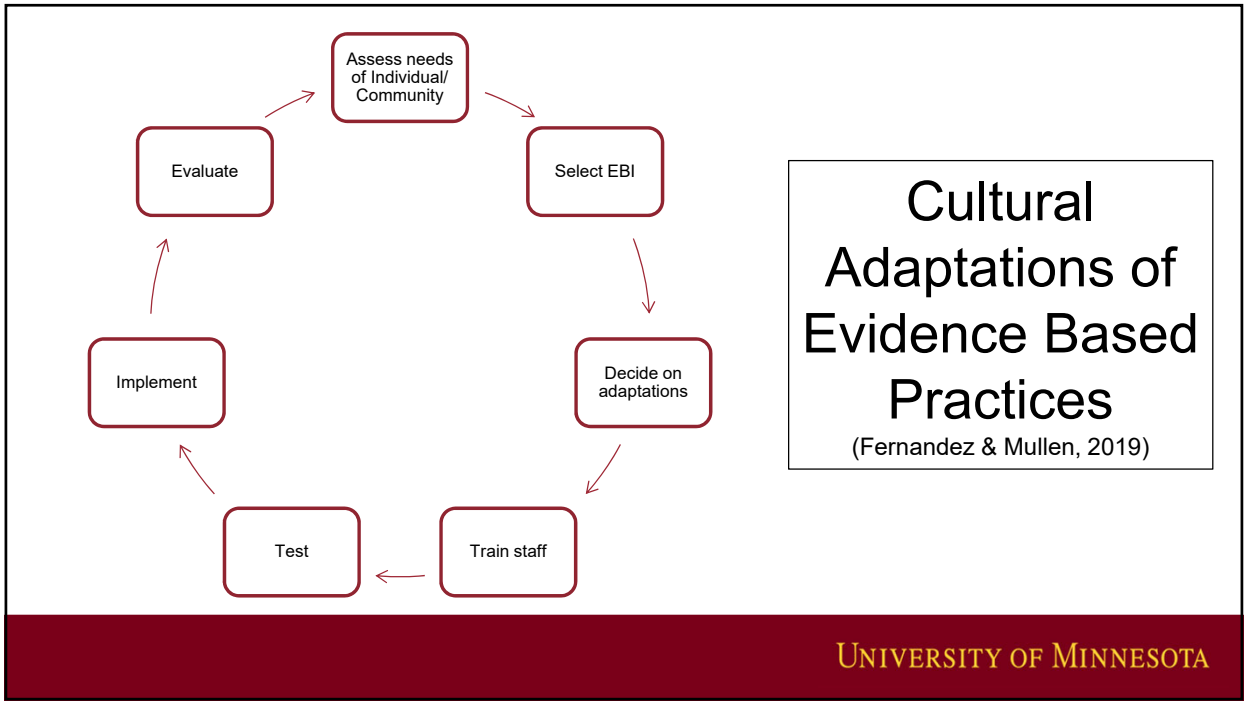
Multiple sources of data including MTSS sources

Encourage parent participation

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Structured Q&A

CHALLENGES AND REALITY OF ADDRESSING DISPROPORTIONALITY IN PRACTICE

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How do we integrate social justice and MTSS to achieve the fundamental aims of both?

Social justice is both a process and a goal that requires action. School psychologists work to ensure the protection of the educational rights, opportunities, and well-being of all children, especially those whose voices have been muted, identities obscured, or needs ignored. Social justice requires promoting non-discriminatory practices and the empowerment of families and communities. School psychologists enact social justice through culturally-responsive professional practice and advocacy to create schools, communities, and systems that ensure equity and fairness for all children and youth.

Adopted by the NASP Board of Directors, April 2017

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What are the primary barriers to engaging in socially just, equitable MTSS?

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How can we leverage data already being collected within most MTSS applications to support social justice?

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Weeks, M., Kulkarni, T., Harris, B., Proctor, S., & Sullivan, A. L. (2020, February). *MTSS is not enough: Preventing disproportionality through nondiscriminatory tiered services.* Symposium at the annual convention of the National Association of School Psychologists, Baltimore, MD.

What are data are necessary to evaluate equity within MTSS?

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QUESTIONS?

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Weeks, M., Kulkarni, T., Harris, B., Proctor, S., & Sullivan, A. L. (2020, February). *MTSS is not enough: Preventing disproportionality through nondiscriminatory tiered services.* Symposium at the annual convention of the National Association of School Psychologists, Baltimore, MD.

For References and Additional Resources

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